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CRIMINAL LAW I (DIL 222.1)

LECTURE NOTE WEEK 1

SOURCES OF NIGERIAN CRIMINAL LAW

Nigeria is a secular (pluralized) state due to its multi-cultural, ethnic and religious diversity and this has greatly influenced the nature and sources of the Nigerian legal system. Many factors have played important roles in shaping the present day Nigerian legal system. Islamic law (especially in Northern Nigeria), local customs and traditions, English law, local legislations, court decisions and foreign laws are key players in discussions about the nature and sources of the Nigerian legal system.

The Constitution of Nigeria provides the definitive principles, rules, norms and doctrines from which the legality and application of all other legal norms in Nigeria are authenticated. Therefore, the Constitution is the *grund norm* (supreme law) of the country and all other laws are inferior to it and void to the extent of any inconsistency. Essentially, there are five sources of the Nigerian legal system, which by extension are the sources of Nigerian criminal law, namely: Customary and Islamic law, Received English law, Nigerian Local Legislation (including delegated legislation), Judicial Precedents, and International law.

1. Customary Law:

Customary laws are rules, regulations, beliefs and practices acknowledged by the indigenous people to whom they relate as regulating their behaviors in specific areas. Such areas may include marriage, divorce, inheritance, land and chieftaincy matters. In the case of *Oyewumi v. Ogunsesan* (1990 11WLR 182 at 207, Obaseki, JSC defined customary law as follows:

TE: that in such Situations, native courts would apply two sets of law – (a) native law and custom to ascertain the guilt of the accused, and (b) the Criminal code to ascertain the sentence.

1958 – Date:

There was the need to re-examine the position of the law, particularly in the northern region. The major setback was that the criminal code ordinance was not drafted for a Moslem community and was not acceptable in the north.

In 1958 the northern region government set up a judicial committee to establish an acceptable criminal justice system. The committee proposed the whole acceptance of English criminal law, the whole acceptance of Islamic law or a hybrid between both of them. It however recommended that a hybrid system was the best choice.

In 1959 the Penal code was adopted to replace the criminal code ordinance in the north. The Penal code was based mostly on the code of Sudan which was largely modeled on the Indian Penal code of 1860. The Indian penal code was drafted by Lord Macaulay and it derives considerably from the common law. In northern Nigeria, the customary criminal law is made clear by S. 3(2) of the Penal code which provides that:

No person is liable to punishment under native law and custom.

However, reference to native law and custom is not entirely excluded.

South:

It was not difficult to get around the situation in southern Nigeria because customary criminal law was not organized. In southern Nigeria, it was decided at the 1958 constitutional conference to abolish customary Criminal law entirely.

S. 22(10) of the 1963 Constitution was to the effect that:

No person shall be convicted of a criminal offence unless that offence is defined and the penalty thereof is prescribed by written law

See also – S. 36(12) CFRN 1999

In *Aoko v. Fagbemi* (1961) 1 All NLR 400, the court rejected an attempt to prosecute a woman on the basis of an alleged adultery. Although adultery was a customary offence, the court discharged and acquitted the accused because adultery was not prescribed as an offence in the Criminal Code of southern Nigeria.

Nigeria achieved independence in 1960 and since then, both the Criminal code and the Penal code have added many amendments to reflect the norms, standards and values of Nigerian people. Today the main source of Nigerian criminal law is Nigerian statutes.

Relationship between the Criminal and Penal Codes

Each code covers offences committed within the territory to which it applies and only within that territory. A Moslem from the North would be safe from prosecution if he came to the south to commit adultery or drink alcohol. The Criminal code and the Penal code both contain identical provisions for dealing with the problem.

Where an offence comprises several elements and some occur outside the territory?

If the initial act or omission occurs within the territory covered by a code and other elements occur outside, then the offender is liable as if all the elements had occurred within the territory.

However, if the initial act or omission occurs outside the territory, but other elements occur within the territory and the offender enters the territory, he will be liable as if the initial act had occurred within the territory.

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P.S Austin - Osh

HISTORY AND ORIGIN OF NIGERIAN CRIMINAL LAW

Many historical factors and developments have played important roles in shaping the present day Nigerian criminal law. Islamic law (especially in northern Nigeria), local customs and traditions, English law, local legislations and court decisions are important factors that have shaped the history of criminal law in Nigeria. Prior to the arrival of the British colonial masters, there were a number of systems of criminal laws existing in present day Nigeria. The southern Nigeria had simple systems of social norms and communal standards of behavior in which the family, age grade system and village played pervasive roles in generating criminal rules and enforcing criminal justice. However, the most common feature of these systems of criminal norms is that they were unwritten. In northern Nigeria, the mostly written Islamic law of crime was well entrenched with several schools of jurists, dominated by the Maliki school and the Moslem community in the North had a highly developed system of Moslem law of crime.

In 1863 in an attempt to gradually abolish the existing customary criminal laws and superimpose the English common law, the English common law of crime was first introduced in the colony of Lagos. Thus, the history of the Nigerian criminal law as it is today dates back to 1862 when Lagos was created as a British colony. In that same year, a court was established and five statutes (Ordinances) were applicable to the colony of Lagos. They were: *Customs Duties Ordinance* No. 1 of 1862; *Harbour Regulations Ordinance* No. 2 of 1862; *Harbour Sanitary Regulations Ordinance* No. 3 of 1862; *Currency Ordinance* No. 4 of 1862 and *Use of Official Seal Ordinance* No. 5 of 1862. This test run in the application of English common law of crime excluded other parts of Nigeria where various forms of customary criminal law were in practice.

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In 1904, Lord Lugard the then Governor of the Northern Protectorate by proclamation introduced a Criminal Code in northern Nigeria with the purpose of consolidating and amending the criminal law. The 1914 Criminal Code was modelled closely after the *Queensland Code of 1899* which was based mainly on a criminal code drafted by Sir James Fitzstephen in 1878. Upon the amalgamation of the Northern and Southern Protectorates in 1914, there were three criminal justice systems in operation throughout the country, namely: the English criminal law in Lagos colony, the criminal code in the north and the indigenous criminal law customs in the south. In order to seem conflict of criminal laws, the Criminal Code that was operational in the north was extended to the entire country after the amalgamation in 1916.

The application of the Criminal code was strictly limited initially – it expressly exempted native courts from its operations and this exemption continued even after the code was extended to cover the entire country in 1916. Therefore, after 1916 most criminal cases in Nigeria were still governed by native law and custom. The seeming unification of 1916 was technical and problematic in nature and it caused a lot of conflict especially between the Criminal code and Islamic law. The situation became an unhappy one for the colonial administration, whereby three or more systems of criminal law existed side by side and this situation was worse in northern Nigeria where the Maliki school of thought was deeply entrenched. Some of the areas of dispute was the fact that Islamic law allowed the infliction of punishment unrecognized by the Criminal code and Islamic law also did not recognize provocation in order to mitigate a sentence of death to manslaughter.

The Maliki law contained many rules that were unacceptable to those trained in English common law of crime, including:

1. Under Maliki law, the offence of homicide included any hostile or unjustified assault resulting in death (even though unintended or unlikely) was punishable by death.
2. The concept of provocation which was acceptable under the Criminal code was not admitted under Maliki law. Under the Criminal code, provocation was capable of reducing murder to manslaughter and the maximum sentence would be life imprisonment. Whereas under Maliki law, an accused person who kills under gross provocation would be found guilty of murder and sentenced to death. Maliki law thus became an integral part of the northern Moslem's way of life and there was no desire to undermine its authority.

By 1933 the colonial administration saw the need for the abolition of customary criminal law as part of the overhaul of the legal system. The need to abolish customary criminal law was not generally accepted but in an attempt to resolve the conflicts in the administration of criminal justice in the country, it however led to the amendment of S. 4 of the Criminal Code. The section initially read thus:

No person shall be liable to be tried or punished in any court in Nigeria, other than a native tribunal, for any offence except under the express provision of the code or some other ordinance or some law or some order-in-council made by his majesty for Nigeria.

The amendment removed the phrase 'other than a native tribunal' from S. 4 of the Criminal code. But the reality and practical implication of the amendment was that it did not stop the use and operation of criminal norms of native law and custom, including Islamic law. Rather, it merely removed native tribunals, which dealt with enormous criminal cases, from its operation through the instrumentality of the amendment of S. 4 of the Criminal code. By the combined

provisions of S. 4 of the Criminal code and S. 10(1) and (2) of *Native Courts Ordinance*, customary criminal law was not however abolished. Therefore, the problem of dual systems of criminal law prevailing simultaneously in the same criminal jurisdiction persisted and continued to be an obstacle in the administration of criminal justice by the colonial administration.

By 1947 it was the general view that the 1933 amendment of the Criminal code was intended to sweep away customary criminal law except with respect to few offences not covered by the Criminal code. The colonial administration established the native courts commission of inquiry which was of the view that the words '*other than a native tribunal*' in S. 4 of the Criminal code ordinance were removed with the intention that punishments only should be affected. Thus, where a native court charges a person for offences under native law and custom, the punishment to be inflicted where the offence is also one under the Criminal code must be in accordance with the punishments in the Criminal code. A significant case in this direction is *Gubba v. Gwandu Native Authority* (1947) 12 WACA, where the appellant was sentenced to death for murder by an Alkali court.

However, the appellant raised a defence of provocation which was not considered by the Alkali court because provocation was not recognized under Islamic law and if the Alkali court had applied the Criminal code, the death sentence would have been mitigated to a sentence of manslaughter. On appeal, the West African Court of Appeal quashed the decision of the lower court and stated that the correct interpretation of the 1933 amendment of S. 4 of the Criminal code was:

1. Where a native court tried an offence which was an offence only against native law and custom then it could try such an accused person in accordance with native law and custom and inflict the customary penalty, but

2. Where the offence tried was an offence under the code, then even though it might also be an offence against native law and custom, the only law to be applied was the code.

It was thus held that customary courts could only fully apply customary law in offences which were not covered under the Criminal code, and if the cases are covered by the Criminal code, customary law could not be applied. The case brought an end to customary criminal law the Criminal code covered most aspects of criminal law and there were very few offences that were not covered by the code. However, this judgement caused a lot of dissatisfaction amongst the Muslim community in the north as Islamic law was thought to be downgraded to the background. To resolve this issue, a committee was set up which proposed that a customary court trying a criminal case had the right to try and sentence the case under customary law without paying regard to the Criminal code. This position was applied in the case of *Kano Native Authority v. Fagaji* (1957) NRNLR and *Tsamiya v. Bauchi Native Authority* (1957) NRNLR.

However, in the case of *Maizabo v. Sokoto Native Authority* (1957), the court held that though a native or customary court has power to try a case under native law and custom, it cannot impose a higher sentence than the accused would have gotten had his case been tried under the Criminal code. Thus native or customary courts were empowered to apply customary law even if there was a provision in the Criminal code, but the native courts must not exceed the maximum sentence that could have been imposed if the case was tried under the Criminal code. This meant that the case could be tried under customary law but for sentencing, recourse had to be made to the Criminal code. Note that in such a situation, native courts would require two sets of law, namely:

1. Native law and custom to ascertain guilt, and
2. The Criminal code to ascertain the sentence.

The relationship between the two systems of criminal law was in need of re-examination, especially in northern Nigeria. One of the major setbacks was that the Criminal code was not drafted for a Moslem community and was not generally acceptable in the north.

In 1958 a Northern government judicial panel was set up to resolve the issue and establish an acceptable criminal justice system. The panel proposed either the whole acceptance of the English criminal law, the whole acceptance of Islamic law or a hybrid between both of them. After long deliberations and consultations, it was decided that the hybrid system was the best choice and the panel recommended that:

1. Maliki law should be confined to personal law of the Moslems, and
2. Criminal law should be codified.

The outcome produced a compromise the *Penal Code of 1959* to replace the Criminal code in the north. The Penal Code was based mostly on the code of Sudan which was largely modelled on the *Indian Penal Code of 1860*. The Indian Penal Code was drafted by Lord Macaulay and it derives considerably from the common law. Thus, the Penal Code of 1959 had characteristics of both the common law and Maliki norms because the north had a more entrenched criminal justice system, so there was the need to be careful in trying to introduce a code that will be different. The Penal Code contained some elements of Islamic law through the criminalization of certain acts like adultery; *S. 387* and *S. 388*, drinking of alcohol; *S. 403*, insulting the modesty of Muslim women; *S. 400*. The code also preserved the punishment of hard lashing; *S. 68(2)*.

In northern Nigeria, the status of customary criminal law is made clear by the provision of *S. 3(2) of the Penal Code* which states that 'no person is to be liable to punishment under native law and custom'. In southern Nigeria, it was not too difficult to change the situation because customary criminal law was not organized and ingrained as Islamic law in the north. It was

therefore decided at the 1963 Constitutional conference to abolish customary criminal law entirely. Thus *S. 22(10) of the 1963 Constitution* was to the effect that:

No person shall be convicted of a criminal offence unless that offence is defined and the penalty thereof is prescribed in a written law.

In line with the above position, the court in the case of *Aoko v. Fagbemi* (1961) All NLR 400 rejected an attempt to prosecute a woman on the basis of an alleged adultery, although adultery was a customary offence, the court discharged and acquitted the accused because adultery was not prescribed as an offence under the Criminal Code of southern Nigeria. In *Ogbomor v. The State* (1985) 1 NWLR (PT 2) 233, the Supreme Court held that a combined reading of the provisions of S. 33(8) and (12) of the 1979 Constitution suggests that no person can be tried and convicted of an offence which did not exist at the time of its commission. The extant provision under the 1999 Constitution is S. 36(8) which provides as follows:

No person shall be held to be guilty of a criminal offence on account of any act of omission that did not, at the time it took place, constitute such an offence, and no penalty shall be imposed for any criminal offence heavier than the penalty in force at the time the offence was committed.

To underscore the fundamental character of this principle, the constitution reiterated this under S. 36 (12), which provides as follows:

Subject as otherwise provided by this constitution, a person shall not be convicted of a criminal offence unless that offence is defined and the penalty therefore is prescribed in a written law; and in this subsection, a written law refers to an Act of the National Assembly or law of a state, and subsidiary legislation or instruments under the provisions of the law.

Thus, in order for an act or omission to constitute an offence in Nigeria, there must be a legislative enactment in that respect. Statutes as a primary source of Nigerian criminal law includes federal, state and local government laws outlining unlawful conducts and attaching penalties. The body of general criminal law is contained in the Criminal Code, applicable in southern Nigeria and the Penal Code, applicable in northern Nigeria. It is therefore clear that at the moment, Nigeria operates a dual Code system because of the applicability of the Criminal Code and the Penal Code.

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ELEMENTS OF AN OFFENCE

P. S Austin - OBRUJI

INTRODUCTION

This section will consider the element of an offence. The black's Law Dictionary defines offence as a violation of the law. The Nigeria Criminal law also defines it as an act or omission which is rendered punishable by some legislative enactment.

The elements of an offence are contained in that particular offence depending on the wording of the offence. Thus, the prosecution must prove all the elements of an offence for which an offence for which an accused person is standing trial. Every offence has two elements, the physical element and the mental element, except strictly liability offence which are complete upon the manifestation of the physical element only.

ACTUS REUS:

POSITIVE ACT

The physical element of an offence may manifest by way of positive act as intent alone, no matter how condemnable cannot amount to an offence. For instance, if John moves Mary's bag with the intention of permanently depriving Mary of the use of that bag, John has committed the offence of stealing against Mary and the movement of the bag from its

original position is the physical element or the actus reus of that offence.

Furthermore, the physical element or actus reus of an offence can manifest in words in respect of certain offences such as defamation, sedition, taking unlawful oath and conspiracy. The physical element in this case is committed by words uttered by the accused.

In addition, someone can be guilty of an attempt to commit an offence if, with intent to commit it, he begins to put his intention into execution by means adapted to its fulfillment and manifests the intention by some overt act. There are several offences where it is enough that the accused is in possession of something that contravenes the law, even though he has not begun to put that thing to any unlawful use. For instance, section 148(3) of the Criminal Code provides for unlawful possession of counterfeit coin or of a means of making them. Mere possession of the counterfeit is enough to amount to the physical element of that offence. It does not matter whether you have put the money to use by way of using it to buy something. Possession may not be physical only, it can also be through agency of another person in which case it will be constructive possession.

In some cases, physical act can manifest by way of a passive state of affairs. For instance, where a club or an association on which you have been a member is now banned by government,

you are ordinarily supposed to stop immediately your membership of that association. But where you continue membership after the ban now becomes the physical element of that offence.

OMISSION

Most crimes are committed by positive action and thus the requirement of an "act" will usually be met by a positive act. But in some circumstances a passive failure to act may be deemed to constitute the requisite "act".

Omission is failure or omitting to do what the law requires or command a person to do, a failure of which constitutes an offence. Although the law is generally reluctant to punish people for omissions, hence, majority of the crimes created by law involve overt acts. It is only in certain cases where people are forced to act and failure to do so is treated as an offence. The criminal code has criminalized such omissions to include duties imposed on peace officers (Police Officers) to suppress riot, duties imposed on member of the ship's crew to obey and duty placed on a family head to supply necessities for a child under fourteen years of age etc. The law treats a breach of any of these duties as a crime.

It is important to note that it is not all omissions that give rise to liability, liability depends on whether there is a duty recognized by law, to act or intervene in the circumstances.

The situations in which duties arise are as follows:

(1) DUTY ARISING OUT OF RELATIONSHIP:

The existence of close relationships can give rise to a duty to act, such as that owed by parents to their children or spouses to each other. In Gibbins and Proctor the father of a child and his partner were convicted of murdering the child who had died as a result of their withholding food from it. The father had breached the duty owed by parents to care for their children while Proctor by taking money to buy food, had assumed a duty towards the child. Again, in Downes, a parent being a member of a religious sect called the peculiar people, who believed in prayer rather than medicine, failed to call a doctor for his sick child who later died. Downes was convicted of manslaughter. The reason for the imposition of duty of care in these situations must be the interdependence that springs from close family tie.

(2) WHERE RESPONSIBILITY HAS BEEN ASSUMED

Where a defendant assumes responsibility towards another or voluntarily assumes a duty towards another, then he/she becomes under a legal duty to act. In R v Instan (1893) the defendant lived with her 73 year old aunt. The aunt who had